

Amended Excerpts

Senate Amendments

February 20, 2026 01:22 PM

1. Line 154 through 161:

154 elective-share right of the surviving community-property spouse.

155 (4) This section does not apply to property transferred by right of survivorship or under a
156 revocable trust or other nonprobate transfer.

157 (5) This section does not limit the right of a surviving community-property spouse $\hat{S} \rightarrow [\{ \text{to} \}]$
158 $\leftarrow \hat{S}$

158 $\hat{S} \rightarrow [\{ \text{Section 75-2-207} \}]$ under Sections 75-2-402, 75-2-403, and 75-2-405 $\leftarrow \hat{S}$.

159 (6) If at death a decedent purports to transfer to a third person property that, under this
160 section, belongs to the surviving community-property spouse and transfers other
161 property to the surviving community-property spouse, this section does not limit the